

MEMORANDUM OF UNDERSTANDING

This **Memorandum of Understanding** (the “**MOU**”) is made and entered into at Chennai on this the

BETWEEN

M/S. < First>, a company incorporated under the provisions of the Indian Companies Act, 1956 and having its Registered Office at 2nd Floor, Tidel Park, No.4, Rajiv Gandhi Salai, Taramani, Chennai-600113 and represented by **Mr. Seejoe George** (hereinafter referred to as “**SIFY**”, which expression shall unless excluded by or repugnant to the subject or context be deemed to mean and include its successors and assigns) of the First Part;

AND

<Name of Exam Centre> having its premises at **<Exam Centre Address with Pin Code>** (hereinafter referred to as “**<Second>**” which expression shall, where so ever the context so requires or admits, mean and include the executors, administrators, successors, attorneys, representatives and permitted assigns) of the Second Part.

(**< First>**, and the **<Second>** are collectively referred to herein as the “**Parties**” and individually as “**Party**”) **<Second>**

WHEREAS

- A. < First>**, is a company engaged inter alia in the business of providing Testing & Assessment services for various organizations in India and abroad.
- B < First>**, has developed software for conducting Computer Based Tests with the help of which it tests candidates for the purpose of measuring the suitability of the potential candidates for admissions to Universities and Recruitment.
- C SIFY** desires to use the Computer Labs arranged by the **Venue**, at locations across **CITY NAME** (“**the said Premises/the Centre**”) on a contract basis for a certain period of time as mentioned herein and has approached the **<Second>** for the same.
- D** The **<Second>** has agreed to allow the use of the said Premises along with the Infrastructure (detailed out specifically in Schedule A) to **< First>**, for a reasonable consideration.
- E** The Parties seek to collaborate with each other on a contract basis with regard to the said Premises. The Parties have come together to form this MOU.

NOW THEREFORE THIS MOU WITNESSETH AS FOLLOWS

1. PURPOSE

- 1.1 The **iWay** hereby agrees that they shall provide the said Premises and infrastructure to **SIFY** to enable them to conduct the computer based examination activities on behalf of their clients.

2. OBLIGATIONS OF THE PARTIES

- 2.1 The **iWay** agrees to provide the said Premises for a period mutually agreed upon or for the complete duration of any such examinations/Tests.
- 2.2 It is hereby agreed by the Parties that the **iWay** shall make available to **SIFY** the Premises for the purpose of conducting Computer Based Examination/Test along with Manpower as per specifications in **Schedule 'A'**
- 2.3 It is further agreed that the any Premises so made available for a particular project shall at all times be exclusively available to **SIFY** for the period of this MOU.
- 2.4 The said Premises shall be handed over to **SIFY** along with the infrastructure agreed upon by and between the Parties and more clearly set out in **Schedule 'A'**
- 2.5 The **iWay** shall provide **SIFY** with the said Premises 1 day prior to the commencement date of any examination as agreed between the Parties.
- 2.6 The **iWay** shall provide **SIFY** with 10% additional Exam PCs to the number that the booking is made as a contingency for any outage.
- 2.7 **SIFY** shall have complete control over the activities of the Premises for the duration of the examination including the provision and maintenance of **SIFY's** staff.
- 2.8 **SIFY** shall place a signboard in the name of the Examination Centre with **SIFY's** signage at the said Premises which shall be placed / located in such a manner that it would be easily accessible for the students visiting the said Premises to appear for the examination. The Premises shall be wholly and completely run as an Examination Centre during the time period as mentioned herein.

3. CONSIDERATION

- 3.1 **SIFY** shall pay the **iWay** at the rate mutually agreed upon from project to project basis thru their authorized partner.

4. CONDITIONS SUBSEQUENT TO THIS UNDERSTANDING

- 4.1 The **iWay** shall ensure that there will be no disturbance or any sort of interruptions in the form of noise or in any other manner during such period and at the time when the Computer Based Examination/Test is in process.
- 4.2 The **iWay** shall ensure that all the authorized candidates having the hall tickets issued for the concerned Examination/Test shall be allowed to enter the premises of the **CENTRE** without any hindrance/ interruptions from the **CENTRE**.
- 4.3 Any reference in the newspapers / advertisements if any relating to conducting the tests at the Premises shall be so carried out in the name of **SIFY** or the client and the **iWay** shall have no right whatsoever to avail any credit for the tests being conducted at their Premises.
- 4.4 The **iWay** shall at no point of time make any announcements with respect to dates of Examination without the prior consent from **SIFY**.
- 4.5 It is further agreed between the Parties that the running of the Centre and all the activities relating to the Computer Based Examination/Test shall be conducted by the staff provided by **SIFY**.
- 4.6 **SIFY** shall maintain its staff at the Premises for the period of the Examination Scheduled.
- 4.7 Furthermore it is agreed between the Parties that the **iWay** shall be obliged to abide by the terms (commercial or institutional) laid down by **SIFY** during such period as mentioned herein.
- 4.8 **SIFY** shall uninstall the software, server, firewall application at the end of the period mentioned herein and shall handover the Premises to the **iWay** in the same condition as it was at the time when **SIFY** had hired the Premises and subject to normal wear and tear.
- 4.9 The term 'end of the period' mentioned hereinabove shall mean that the contractual obligations between **SIFY** and the **iWay** shall be completed for the time frame provided in Clause 2.1.
- 4.10 Where **SIFY** desires to use the Premises organized by the **iWay** for conducting examinations pursuant to the expiration of the time period mentioned herein and within the validity of this MOU being One (1) year, they can do so by way of prior intimation to **iWay**

5. NONCOMPETITION & NON SOLICITATION

- 5.1 The **iWay** undertakes that it shall not without the **SIFY'S** prior written consent, either during or within two year after completion of this Agreement or termination of this Agreement whichever is the later, engage employ or otherwise solicit for employment any person who, during the relevant period, was appointed and/or employed by **SIFY**.

6. TERM & TERMINATION

- 6.1 This MOU shall be in force for a period of Three (3) years from the date of execution and shall terminate on the expiry of such period. In the event that the Parties seek to continue their association, a fresh MOU may be executed by the Parties, on the expiry of the said term of this MOU.
- 6.2 The terms of this MOU shall continue to be in force till all the rights and obligations emanating are fulfilled by the respective Parties
- 6.3 Either Party shall have the right of termination of this MOU without assigning any reason thereto on serving the other Party 30 days *prior* written notice.

7. GOVERNING LAW

This MOU shall be governed by and construed in accordance with the laws of India and subject to the jurisdiction of the courts at Chennai.

8. ARBITRATION

In the event of any dispute, difference, claim or question arising out of the MOU during the continuance of the same or upon or after termination thereof, such dispute or difference shall be referred to arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996. The venue of the arbitral proceedings shall be Chennai and shall be conducted in English.

9. GENERAL

9.1 Waiver

No failure to exercise and no delay in exercising on the part of any of the Parties hereto any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any right, power or privilege preclude any other or further exercise thereof or the exercise of any other right, power or privilege. The rights and remedies provided in this MOU are cumulative and not exclusive of any rights or, remedies otherwise provided by law.

9.2 Exclusion of Assignment

Neither Party may assign its rights or obligations in whole or part hereunder to any affiliate or third Party without the prior written consent of the other.

9.3 Sever ability

Notwithstanding that any provision of this MOU may prove to be illegal or unenforceable, the remaining provisions of this MOU shall continue in full force and effect.

9.4 Entire MOU

This MOU and all **Schedules**, if any, attached hereto, constitute the entire MOU between the Parties hereto with respect to the matters dealt with herein and therein.

9.5 Notices

All notices, requests, consents and other communications under this Agreement must be in writing and must be :

- a) Mailed by registered post; or
- b) Sent by recognized courier or similar overnight delivery or courier service, or
- c) Delivered (in person, or by email, facsimile transmission, telex or similar telecommunications equipment) against receipt, as follows:

If to <Exam Centre Name>

Address:

Attention:

Facsimile:

Telephone:

E-mail:

If to **SIFY**:

Address: **SIFY** Technologies Limited

2nd floor, TIDEL Park, Tharamani,

Rajiv Gandhi Salai Chennai - 600113, India

Attention: **Mr. SEEJOE GEORGE**

Facsimile: AGM-Operations

Telephone: 99006 99433

Email: seejoe.george@sifycorp.com

Or to another address of which the addressee has notified the sender in writing in accordance with this Section. Notices given by certified mail will be deemed given at the time of certification, and notices given by any other permitted means will be deemed given at the time of receipt of the notice.

Each notice shall be deemed to have been served if by personal delivery when delivered, if by prepaid post seven (7) days after posting and if by facsimile transmission or otherwise upon receipt of the answer back receipt.

9.6 Modifications

No modification or amendment of this MOU and no waiver of any of the terms or conditions hereof shall be binding unless made in writing duly executed by both Parties.

IN WITNESS WHEREOF, the Parties hereto have caused this MOU to be executed as of the day and year first above written by their duly authorized representatives.

SIFY	iWay
By: SEEJOE GEORGE	By:
Title: AGM-Operations	Title:
Date:	Date:
Signature :	Signature :

Schedule 'A'

IWAY shall be responsible to provide the below infrastructure & facilities::

Amenities
Reception Area for registration of candidates. (Recommended It should be Under CCTV Coverage)
Waiting Area for candidates
Storage Facility for the Candidates & Should be Covered under CCTV Coverage
Administrative Room/Control Room for the Sify staff
A Separate Room for placing the Exam Servers with LAN, UPS & DG Connectivity with Lock and Key facility
Briefing Room for Imparting Training
AC Facility in All Computer Labs where CBT Exam will be Executed
CCTV Facility in All Labs where CBT Exam will be conducted (At Least 1 Per 15 Nodes minimum giving clear view of all candidates There should not be any dark zone.
Drinking Water & Toilet facilities etc.

INFRASTRUCTURE

Exam Computers (Min configuration)	Core Duo , 2 GB Ram, 80 GB HDD, 15/17" LCD Monitor, Keyboard & Optical Scroll mouse
Licensed Operating System	Windows 7 & above/8/8.1/10 (Windows with all Microsoft Updates/Patches/Service Packs)
Browser	Internet Explorer Ver. 9.0 or above
Antivirus	Any licensed AV with latest definitions.
Back-up PCs	Back-up PCs - 10% of the total seats booked

Internet	Specification
Internet Connection	Min 2 Mbps line 1:1 connectivity with static IP (preferred)
Power	Specification
UPS	Online/Offline UPS (IGBT Based) with min. 1 Hour backup or more depending on number of PCs and other

	equipment connected (Recommended it should be Under AMC)
Generator	Adequate capacity to support for longer duration of power failures Supported By Full time DG technician, AMC & Valid service Certificate all times. 0.25 KVA should be available per node i.e. for 100 systems a 10 KVA Generator should be available.
Computer Network	Specification
LAN Cabling	Structured cabling with Cat 6 Cables and I/O Box, Network Rack with Patch Panel available.
Switch Type & Speed	24 Ports switch with 100/1000 mbps Note- Depend on number of computers
LAN	All PCs should be in same network
Printers	Specification
Backup Devices	Laser/Inkjet Printers-1 for every 100 Exam PCs 1 Printer & At Least 1 Back 24 port Switch Per 100 Computers.

MANPOWER

Manpower to be provided	Eligibility	No. of Resources to be provided
Exam Centre Head/Exam Centre Superintendent	A senior academic/administrative staff member shall be nominated by the Exam Centre, who shall be available at the venue on Mock/Actual Exam days for escalation and support required for the smooth conduct of exams.	1 per Exam centre.
Invigilators/Test Administrators	The nominated person need to carry minimum 2 years working experience and should be on the official roles of the Centre. Only Graduates with a 10+2+3 years education qualification will be accepted.	Based on Client requirement, could range from 1:12 to 1:30
IT Support/System Admins.	The nominated system/network administrators need to carry minimum 2	1 for 100 systems

	years of experience with good understanding of the Centre IT Infrastructure & Network environment and capable to trouble shoot Desktop & Network related issues	
Security Guards		1 for every 100 systems
Helpers/House Keeping		1 for every 100 systems
Electricians/Generator Operators		1 per 300 systems.

Arrangement for food & refreshments facility for staff deployed as per requirement within the stipulated budget against the payment to be made by SIFY or partners.

Actual requirement of resources will be communicated separately and the payment will be as per the actual requirement given.

Schedule 'B'

Commercials:

1. All Commercials in this agreement will be executed by Sify's authorized partner, Bizzlon Management Solutions Pvt. Ltd, having their corporate Office at Vishnu Shivam Mall, 1st Floor, Thakur Village, Kandivali east, Mumbai 400101
2. Rate as decided for every project based on requirement
3. Inclusions in above fixed rate:
 - a. Facilities as explained in Annexure B.
4. Exclusion from the above fixed rate (reimbursed by a debit note along with supporting bills / vouchers):
 - a. Any additional Manpower that is requested by SIFY on the days leading to the exam or on the day of the exam
 - b. H/W apart from the one prescribed in Annexure B
5. Advance Payment equal to **30%** of the total value of Invoice generated for the duration for every Exam Schedule shall be given to IWAY as a security deposit by Bizzlon Management Solutions Pvt. Ltd. on behalf of Sify on the confirmation of the conduct of a schedule of exams. This advance will be paid on the IWAY meeting all the Technical requirements for the Exams and post the clearance from Sify's Customer. This Security Deposit will be adjusted by Bizzlon Management Solutions Pvt. Ltd. on the receipt of the Final Invoice for every engagement that Sify decides to use the IWAY.
6. Invoices for the use of the IWAY for a particular Exam schedule will need to be generated in the name Bizzlon Management Solutions Pvt. Ltd. by the IWAY.
7. All payment due to the IWAY will be cleared by Bizzlon Management Solutions Pvt. Ltd. on publication of results by SIFY's CUSTOMER or within 120 days of completion of the Exam Schedule or whichever Is earlier.